

25STCV24547 25STCV24547

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV24547 Hearing Date: August 5, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 309

TENTATIVE

RULING

CHARLOTTE CADENAS

vs.

STANTON AND COMPANY, LLC

Case

No.: 25STCV24547

Hearing Date: August 5, 2026

Defendant's demurrer to Plaintiff's fourth and eighth causes of action is OVERRULED.

On 8/20/2025, Plaintiff Charlotte Cadenas (Plaintiff) filed suit against Stanton and Company, LLC (Defendant). On 2/25/2026, Plaintiff filed a first amended complaint (FAC), alleging: (1) disability discrimination; (2) retaliation; (3) retaliation; (4) retaliation; (5) failure to accommodate; (6) failure to engage in interactive process; (7) wrongful termination; (8)

violation of the California Equal Pay Act; and (9) waiting time penalties.

On 4/3/2026, Defendant demurred to Plaintiff's fourth and eighth causes of action.

Discussion

Defendant argues that Plaintiff's fourth and eighth causes of action are insufficiently pled.

After review, the Court disagrees.

As to the fourth cause of action,

Defendant argues a number of deficiencies including that internal personnel issues don't constitute illegal activity, there is no causation, there were legitimate reasons for termination, and the cause of action is duplicative and uncertain. However, first, Defendants' arguments related to illegality, causation, and legitimate termination reasons involve factual determinations not properly made at the pleadings stage. As to the remaining arguments, the Court finds that the cause of action is not uncertain and also finds no duplication. FEHA retaliation and section 1102.5 retaliation require different elements and are based on different alleged types of retaliation.

As for the eighth cause of action

for violation of the California Equal Pay Act (CEPA), Defendant argues that this claim is insufficiently pled because Plaintiff has not alleged specific facts regarding comparator employees.

CEPA prohibits the paying of lower wage rates than those paid to members of the opposite sex or of other ethnic or racial groups for substantially similar work. (Cal. Lab. Code, § 1197.5.) In order to establish a prima facie case under CEPA, a plaintiff is required to show "not only that she is paid lower wages than a male comparator for equal work, but that she has selected the proper comparator." (Hall v. County of Los Angeles (2007) 148 Cal.App.4th 318, 324) (explaining that an EPA claim fails as a matter of law where plaintiff fails to provide a basis for the use of a male colleague as a comparator.)

The Court previously sustained Defendant's demurrer to this cause of action on the grounds that Plaintiff needed to allege additional facts which

could provide Defendant adequate notice of the skill, effort, responsibility, or working conditions of any alleged comparator. Now, Plaintiff alleges that two named Caucasian women earned more than Ms. Cadenas, despite sharing the same title and duties as Ms. Cadenas. (FAC ¶ 3.) While Defendant argues that the claim remains deficient because “the FAC does not allege any overlap in the comparators’ employment, seniority, or length of employment to support a contemporaneous pay comparison,” these specifics require the benefit of discovery. As such, Plaintiff’s allegations are sufficient at the pleadings stage.

Based on the foregoing, Defendant’s demurrer to Plaintiff’s fourth and eighth causes of action is overruled.

It is so
ordered.

Dated:
August , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party’s email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.